

HIGH COURT AND SUBORDINATE COURTS

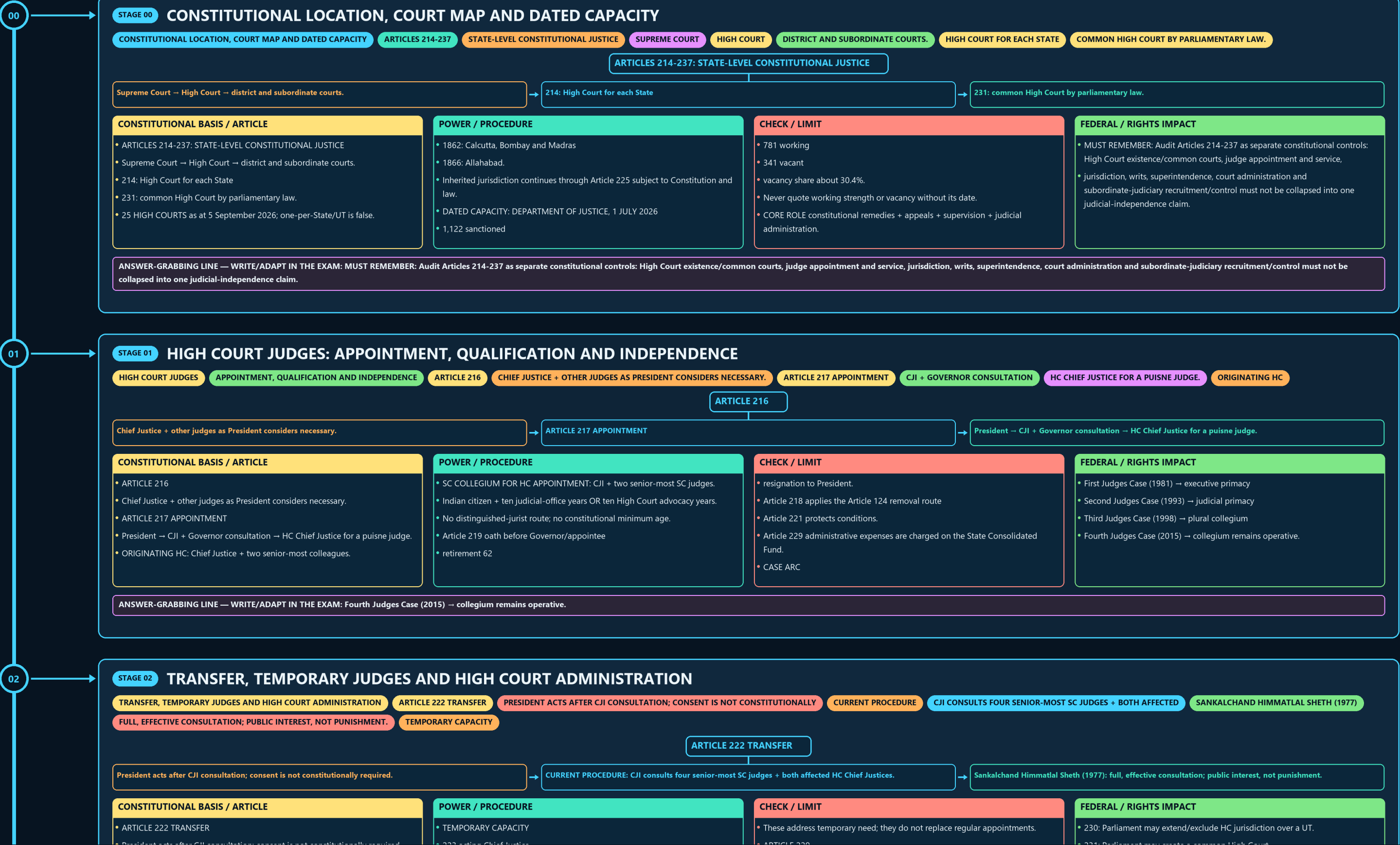
CONSTITUTIONAL LOCATION, COURT MAP → HIGH COURT JUDGES: APPOINTMENT → TRANSFER, TEMPORARY JUDGES AND → JURISDICTION GATEWAY AND ARTICLE → FIVE WRITS AND THE → TRIBUNALS, BASIC STRUCTURE AND

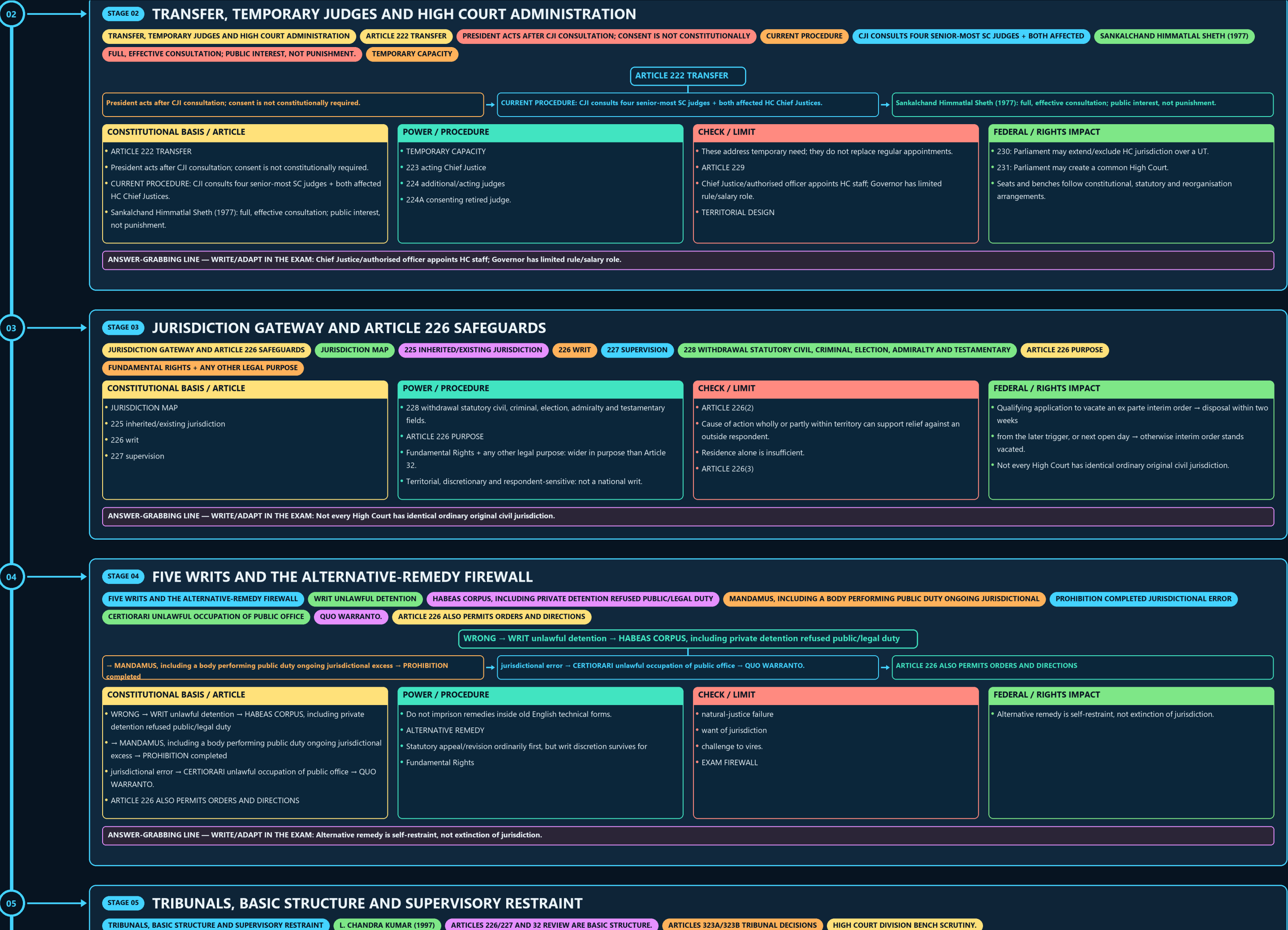
Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW
SUBORDINATE EXTRA
APPROVAL / REVIEW

Approval: FALSE
Pending user review
source generation g7 and all prior artifacts unchanged

CORE BEFORE EXTRA
prior artefacts unchanged
exact same master drives poster and tiles





- jurisdictional error → CERTIORARI unlawful occupation of public office → QUO WARRANTO.
- ARTICLE 226 ALSO PERMITS ORDERS AND DIRECTIONS

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Alternative remedy is self-restraint, not extinction of jurisdiction.

05

STAGE 05

TRIBUNALS, BASIC STRUCTURE AND SUPERVISORY RESTRAINT

TRIBUNALS, BASIC STRUCTURE AND SUPERVISORY RESTRAINT

L. CHANDRA KUMAR (1997)

ARTICLES 226/227 AND 32 REVIEW ARE BASIC STRUCTURE.

ARTICLES 323A/323B TRIBUNAL DECISIONS

HIGH COURT DIVISION BENCH SCRUTINY.

TRIBUNALS SUPPLEMENT; THEY NEITHER DISAPPEAR NOR FINALLY REPLACE CONSTITUTIONAL

ARTICLE 227

JUDICIAL + ADMINISTRATIVE SUPERINTENDENCE OVER TERRITORIAL COURTS/TRIBUNALS

L. CHANDRA KUMAR (1997)

Articles 226/227 and 32 review are Basic Structure.

Articles 323A/323B tribunal decisions → High Court Division Bench scrutiny.

Tribunals supplement; they neither disappear nor finally replace constitutional courts.

CONSTITUTIONAL BASIS / ARTICLE

- L. CHANDRA KUMAR (1997)
- Articles 226/227 and 32 review are Basic Structure.
- Articles 323A/323B tribunal decisions → High Court Division Bench scrutiny.
- Tribunals supplement; they neither disappear nor finally replace constitutional courts.

POWER / PROCEDURE

- ARTICLE 227
- Judicial + administrative superintendence over territorial courts/tribunals
- Armed-Forces-law forums excluded; petition or suo motu possible.
- RADHEY SHYAM (2015): civil-court judicial orders belong under 227, not 226.

CHECK / LIMIT

- K. VALARMATHI (2025): supervision cannot supplant trial and statutory appeal.
- ARTICLE 228
- Substantial constitutional-interpretation question → HC withdraws
- decides question or case → may return case with binding answer.

FEDERAL / RIGHTS IMPACT

- TRAP: supervision and withdrawal are not routine appeals.
- CLOSE DISTINCTION: Keep Articles 226, 227 and 235 distinct. Article 226 reaches Fundamental
- Rights and other legal rights; Article 227 is supervisory rather than an ordinary appeal
- Article 235 gives the High Court administrative control over the district and subordinate judiciary.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 235 gives the High Court administrative control over the district and subordinate judiciary.

06

STAGE 06

ARTICLES 233-237 AND CURRENT RECRUITMENT LAW

ARTICLES 233-237 AND CURRENT RECRUITMENT LAW

ARTICLE 233 DISTRICT JUDGES

GOVERNOR APPOINTS/POSTS/PROMOTES IN CONSULTATION WITH HIGH COURT.

ARTICLE 233(2) TEXT

OUTSIDE-SERVICE CANDIDATE

SEVEN ADVOCACY YEARS + HC RECOMMENDATION.

REJANISH K.V. V. K. DEEPA (2025 INSC 1208)

PROSPECTIVELY OVERRULES DHEERAJ MOR.

ARTICLE 233 DISTRICT JUDGES

Governor appoints/posts/promotes in consultation with High Court.

Article 233(2) text: outside-service candidate → seven advocacy years + HC recommendation.

REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 233 DISTRICT JUDGES
- Governor appoints/posts/promotes in consultation with High Court.
- Article 233(2) text: outside-service candidate → seven advocacy years + HC recommendation.
- REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

POWER / PROCEDURE

- Prospectively overrules Dheeraj Mor.
- Qualifying serving judicial officers may compete in direct recruitment using combined advocacy/judicial-service experience
- minimum age 35
- eligibility at application date.

CHECK / LIMIT

- ARTICLE 234 BELOW DISTRICT JUDGE
- Governor's rules + State PSC consultation + High Court consultation.
- ALL INDIA JUDGES ASSOCIATION (20 MAY 2025) future Civil Judge entry → three years Bar practice
- 25% LDCE District-Judge promotion route + suitability control.

FEDERAL / RIGHTS IMPACT

- 236 defines district judge/judicial service
- 237 can apply chapter to notified magistrates.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 236 defines district judge/judicial service | 237 can apply chapter to notified magistrates.

07

STAGE 07

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

ARTICLE 235 CONTROL IN HIGH COURT POSTING + PROMOTION

NRIPENDRA NATH BAGCHI (1966)

CONTROL INCLUDES DISCIPLINARY AUTHORITY.

CHANDRA MOHAN (1966)

EXECUTIVE DOMINANCE IN DISTRICT-JUDGE SELECTION IS UNCONSTITUTIONAL.

INDEPENDENCE CHAIN

GOVERNOR/STATE RECRUITMENT ROLE + MANDATORY HC CONSULTATION

ARTICLE 235 CONTROL IN HIGH COURT posting + promotion + leave + disciplinary control, subject

NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.

CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.

INDEPENDENCE CHAIN

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 235 CONTROL IN HIGH COURT posting + promotion + leave + disciplinary control, subject to law and appeal rights.

POWER / PROCEDURE

- Governor/State recruitment role + mandatory HC consultation
- High Court career control

CHECK / LIMIT

- District Judge / Sessions Judge
- Civil Judge Senior Division / Chief Judicial Magistrate

FEDERAL / RIGHTS IMPACT

- CRIMINAL CONTROL
- Sessions death sentence → High Court confirmation before execution.

07

STAGE 07

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

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INDEPENDENCE CHAIN

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 235 CONTROL IN HIGH COURT posting + promotion + leave + disciplinary control, subject to law and appeal rights.
NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.
CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.
INDEPENDENCE CHAIN

POWER / PROCEDURE

Governor/State recruitment role + mandatory HC consultation
High Court career control
trial judges insulated from the litigating executive.
DISTRICT STRUCTURE, SUBJECT TO STATE LAW

CHECK / LIMIT

District Judge / Sessions Judge
Civil Judge Senior Division / Chief Judicial Magistrate
Civil Judge Junior Division / Judicial Magistrate.
Article 236 defines district judge broadly; names and pecuniary powers vary.

FEDERAL / RIGHTS IMPACT

CRIMINAL CONTROL
Sessions death sentence → High Court confirmation before execution.
Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

08

STAGE 08

LEGAL AID AND SPECIALISED ACCESS INSTITUTIONS

LEGAL AID AND SPECIALISED ACCESS INSTITUTIONSARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987HIGH COURT LEGAL SERVICES COMMITTEETALUK COMMITTEE.ELIGIBILITY USES STATUTORY CATEGORIES AND PRESCRIBED INCOME CEILINGS; ONEORDINARY LOK ADALAT SETTLEMENT BY CONSENT

CIVIL + COMPOUNDABLE CRIMINAL MATTERSNONE MERITS DECISION AFTER FAILURE.

ORDINARY LOK ADALAT settlement by consent

civil + compoundable criminal matters

no merits decision after failure.

PERMANENT LOK ADALAT pre-litigation public-utility field

conciliation first

limited merits decision after failure.

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987
NALSA → SLSA / High Court Legal Services Committee → DLSA → Taluk committee.
Eligibility uses statutory categories and prescribed income ceilings; one old figure is unsafe.

POWER / PROCEDURE

ORDINARY LOK ADALAT settlement by consent
civil + compoundable criminal matters
no merits decision after failure.

CHECK / LIMIT

PERMANENT LOK ADALAT pre-litigation public-utility field
conciliation first
limited merits decision after failure.

FEDERAL / RIGHTS IMPACT

ARBITRATION agreement-based private adjudication of arbitrable civil/commercial disputes.
FAMILY COURTS / GRAM NYAYALAYAS statutory specialised access; implementation and jurisdiction are not nationally uniform.
PYQ 2024: compare source, consent, field, criminal reach and legal effect.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PYQ 2024: compare source, consent, field, criminal reach and legal effect.

09

STAGE 09

ALL INDIA JUDICIAL SERVICE: ROUTE, DESIGN AND LIMITS

ALL INDIA JUDICIAL SERVICEROUTE, DESIGN AND LIMITSARTICLE 312 ROUTERAJYA SABHA TWO-THIRDS OF MEMBERS PRESENT AND VOTINGPARLIAMENT MAY CREATE SERVICE BY LAW.ARTICLE 312(3)AIJS CANNOT INCLUDE POSTS BELOW DISTRICT JUDGE.

ARTICLE 312 ROUTE

Rajya Sabha: two-thirds of members present and voting

Parliament may create service by law.

ARTICLE 312(3): AIJS cannot include posts below district judge.

CONSTITUTIONAL BASIS / ARTICLE

ARTICLE 312 ROUTE
Rajya Sabha: two-thirds of members present and voting
Parliament may create service by law.
ARTICLE 312(3): AIJS cannot include posts below district judge.
CURRENT STATUS, 28 AUGUST 2026: no AIJS exists.

POWER / PROCEDURE

CASE FOR national standards
wider pool
predictable recruitment
mobility and diversity.
CASE AGAINST language and local law

CHECK / LIMIT

State reservation/cadre design
federal role
career integration.
NON-NEGOTIABLE DESIGN
High Court role in selection/probation + Article 235 control + local-language testing

FEDERAL / RIGHTS IMPACT

State-law training + federal consultation + transparent allocation.
Do not confuse AIJS with the 2025 Civil Judge Bar-practice rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Do not confuse AIJS with the 2025 Civil Judge Bar-practice rule.

10

STAGE 10

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORMCAPACITY DIAGNOSIS VACANCIES + STAFF/INFRASTRUCTURE + PROCESS/SERVICE DELAY +COST/UNDERTRIAL HARDSHIPWEAKER RIGHTS AND COMMERCIAL CERTAINTY.DATED HIGH COURT SNAPSHOT, 1 JULY 20261,122 SANCTIONED781 WORKING

341 VACANT.

CURRENT STATUS, 28 AUGUST 2026: no AJS exists.

CASE AGAINST language and local law

High Court role in selection/probation + Article 235 control + local-language testing

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Do not confuse AJS with the 2025 Civil Judge Bar-practice rule.

10

STAGE 10

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

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CAPACITY DIAGNOSIS vacancies + staff/infrastructure + process/service delay + government litigation

backlog → cost/undertrial hardship → weaker rights and commercial certainty. → DATED HIGH COURT SNAPSHOT, 1 JULY 2026 → 1,122 sanctioned

CONSTITUTIONAL BASIS / ARTICLE

CAPACITY DIAGNOSIS vacancies + staff/infrastructure + process/service delay + government litigation
backlog → cost/undertrial hardship → weaker rights and commercial certainty.
DATED HIGH COURT SNAPSHOT, 1 JULY 2026
1,122 sanctioned

POWER / PROCEDURE

781 working
341 vacant.
ECOURTS PHASE III, 2023-2027, RS 7,210 CRORE record digitisation + e-filing/e-payments + e-Sewa Kendras + interoperable management.
NJDG age/stage/workload visibility → diagnosis and allocation

CHECK / LIMIT

not crude judge ranking or disposal quotas.
EXECUTABLE REFORM appointment calendars
registry/staff capacity
accountable government appeals reliable service

FEDERAL / RIGHTS IMPACT

age-based dockets
legal aid
cyber/privacy/local-language safeguards.
Digital-by-default must never become digital-only.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXECUTABLE REFORM appointment calendars | registry/staff capacity | accountable government appeals reliable service | age-based dockets | legal aid | cyber/privacy/local-language safeguards.

11

STAGE 11

COMPARISON, PYQ CONTROLS AND MARKS-SCALED ANSWER SPINE

COMPARISON, PYQ CONTROLS AND MARKS-SCALED ANSWER SPINESUPREME COURTHIGH COURTSUBORDINATE COURTSARTICLE 32 FR REMEDYARTICLE 226 FR + LEGAL RIGHTSTATUTORY TRIAL JURISDICTION NATIONAL APEXTERRITORIAL CONSTITUTIONAL COURT

SUPREME COURT → HIGH COURT → SUBORDINATE COURTS → Article 32 FR remedy → Article 226 FR + legal rights

CONSTITUTIONAL BASIS / ARTICLE

SUPREME COURT
HIGH COURT
SUBORDINATE COURTS
Article 32 FR remedy
Article 226 FR + legal rights

POWER / PROCEDURE

local facts and first adjudication no Article 235 role
Articles 227/229/235 administration
controlled by High Court.
PYQ ROUTES
2024 GS-II Q2, 10 marks/150 words: Lok Adalat versus Arbitration Tribunal.

CHECK / LIMIT

10 MARKS thesis → 3 article distinctions → one case → limit → verdict.
15 MARKS architecture → mechanism → case/current evidence → criticism → targeted reform.
20 MARKS multi-dimensional matrix → causal chain → counterargument → executable safeguards.
FINAL LINE
Independent State justice needs broad remedies, restrained supervision,

FEDERAL / RIGHTS IMPACT

The 1 July 2026 DoJ snapshot is 1,122 sanctioned, 781 working and 341 vacant.
Rejanish K.V.
(2025 INSC 1208) prospectively replaced the categorical Dheeraj Mor exclusion
AJS remains uncreated.

MECHANISM / VERDICT — 15 MARKS architecture → mechanism → case/current evidence → criticism → targeted reform.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 10 MARKS thesis → 3 article distinctions → one case → limit → verdict.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT37. ARTICLE 226 VERSUS ARTICLE 227 IN ANSWER WRITING38. HIGH COURT VERSUS SUPREME COURTA39. APPOINTMENT REFORM MATRIX40. ANSWER-WRITING EVIDENCE DISCIPLINEHIGH COURT CONTROL PROTECTS DISTRICT JUDICIAL INDEPENDENCE.NAMED EVIDENCEARTICLES 233-235.

OPTIONAL DOCTRINE / CASE

37. Article 226 versus Article 227 in answer writing
38. High Court versus Supreme Court
39. Appointment reform matrix
40. Answer-writing evidence discipline

ADVANCED LIMIT

Claim: High Court control protects district judicial independence.
Named evidence: Articles 233-235.
Mechanism: consultation for appointments and High Court control over posting/promotion/leave.
Analysis: removes direct State-executive leverage.

COMPARATIVE NUANCE

Qualification: recruitment and infrastructure remain shared responsibilities.
Verdict: independence requires High Court control plus coordinated capacity.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.